

GA-HR-02

Working Hours, TOIL & Leave Requests

Normal hours, time off in lieu, leave categories, supporting documents, and the written approval process.

APPLIES TO

Gardner Academy employees and relevant staff

AUTHORITY

Employment Contract clauses 5 and 7 and Annexure C; Labour Act 11 of 2007 sections 23-27; Labour General Regulations, 2008 regulation 5

01 Purpose

This policy records the school's contractual approach to overtime, school functions, and compensation through paid time off in lieu.

02 Normal working hours

Normal working hours are 45 hours per week, excluding a one-hour unpaid lunch break per working day.

03 School functions and additional hours

Because of the nature of school operations, employees may be required to participate in school activities, meetings, events, and functions outside normal working hours, including Saturdays. These activities are an inherent and reasonable requirement of employment in a school environment.

04 Time off in lieu

When an employee works additional hours beyond normal working hours, the employer and employee agree that those hours will be compensated through paid time off during school holidays or another agreed period. Time off in lieu must be equivalent to or greater than the additional hours worked and must be scheduled so that school operations are not disrupted. This arrangement is agreed in lieu of overtime pay, provided that statutory minimum requirements under Namibian law are met.

05 Reasonable overtime

The employee acknowledges that the salary paid includes reasonable overtime inherent in the nature of school operations.

06 Recording additional hours

Additional hours and the corresponding paid time off must be recorded and approved through the school's process so that the arrangement is applied accurately and consistently.

07 How to request leave

Except where an emergency makes advance application impossible, an employee must:

- Submit the approved written leave request to the Head of Department or designated manager as early as reasonably possible.
- State the leave category, dates, departure and return times, reason, and any effect on lessons, supervision, deadlines, or assigned duties.
- Attach the supporting documents required for that leave category.
- Prepare a suitable handover or coverage plan when requested.
- Wait for written approval before making commitments or leaving duty. A verbal discussion, submitted form, unanswered message, or assumption does not amount to approval. If written approval has not been received, the request must be treated as not approved and the leave must not be taken.

In a genuine emergency, the employee must notify the Head of Department or designated manager as soon as reasonably possible and complete the required written process and supporting documents promptly afterwards. This procedure does not remove any statutory leave entitlement.

08 Approval considerations

Employees should understand that discretionary leave requests may be considered against available leave, the reason and notice given, supporting documents, student safety and supervision, staffing and timetable needs, deadlines, operational impact, previous arrangements, and available coverage. A request is approved only when the employee receives written confirmation.

09 Statutory leave categories

Annual leave, sick leave, compassionate leave, maternity leave, and extended maternity leave are administered according to the Labour Act and the relevant Gardner policy. The supporting-document and notice rules for each category continue to apply. Study leave and special-circumstance leave are additional Gardner arrangements and do not replace or reduce a statutory entitlement.

10 Study leave

Gardner may provide reasonable paid study leave where the approved programme, qualification, module, assessment, or examination is relevant to the employee's current role or reasonably supports their development and future contribution at Gardner.

Study leave eligibility must be approved before the course or programme is relied upon for paid study leave. Employees should discuss the proposed study with Administration before enrolment where possible. Approval of a programme does not automatically approve every requested date.

As soon as the employee receives an examination or compulsory-assessment schedule, the employee must submit the leave request with confirmation from the recognised education or training institution showing enrolment, the assessment or examination, and its date and time. The employee must wait for written confirmation identifying the approved paid study-leave period. Study leave that has not been approved in writing must not be taken as paid study leave.

11 Compassionate and bereavement leave

Compassionate leave is a statutory entitlement under section 25 of the Labour Act when there is a death or serious illness involving a qualifying family member. For this policy, bereavement leave means compassionate leave taken following the death of a qualifying family member.

The qualifying family relationships are:

- A child, including a child adopted under any law, custom, or tradition.
- A spouse.
- A parent or grandparent of the employee.
- A brother or sister of the employee.
- A father-in-law or mother-in-law of the employee.

These relationships determine eligibility under section 25. Leave for a death or serious illness involving one of these family members is not a discretionary special-circumstance request, provided the employee meets the statutory application and evidence requirements.

The employee must follow the prescribed application process and provide reasonable evidence of the serious illness or death and the qualifying relationship. Where advance application is impossible, the employee must notify the school of the absence and intended duration as soon as reasonably possible, then submit the required application and evidence promptly afterwards.

12 Special-circumstance leave

Leave for an important personal circumstance that does not fall within another approved leave category must be requested in writing and approved before it is taken. The request should explain the circumstances, dates, duration, supporting information, and proposed handover. The written decision will state whether the time is treated as paid special leave, annual leave, unpaid leave, time off in lieu, or another approved arrangement. If approval is not given in writing, the leave is not approved and must not be taken, except where an emergency makes advance approval impossible.

13 Partial-day leave and appointments

The same written request and approval rules apply when an employee wishes to arrive late, leave early, or leave campus temporarily for an appointment or personal matter. The request must state the departure and expected return time and explain how students, lessons, supervision, meetings, and duties will be covered. Partial-day leave is at the discretion of the Head of Department or designated manager, subject to any applicable statutory right.

The decision may consider urgency, notice, frequency, available leave or time off in lieu, staffing, safeguarding, timetable disruption, operational needs, and the proposed handover. The employee must not leave campus until written approval has been received, must follow the required sign-out and sign-in process, and must notify the approver promptly if the return time changes.